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ELECTRONICALLY
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Superior Court of California,
County of San Francisco
05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF 425 16
G DISCOVERY**

(CCP § 425.16, subd. (g))

Dept.: 610
Date: June 24, 2026

**PLAINTIFF'S MEMORANDUM OF POINTS AND AUTHORITIES IN
SUPPORT OF MOTION FOR ORDER PERMITTING SPECIFIED DIS-
COVERY UNDER CODE OF CIVIL PROCEDURE SECTION 425.16,
SUBDIVISION (G)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

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I. INTRODUCTION

Plaintiff Dylan Franciscus Rosario respectfully submits this Memorandum of Points and Author-
ities in support of his Motion for an order under Code of Civil Procedure section 425.16, sub-
division (g), permitting specified discovery to proceed during the pendency of Defendant CSAA
Insurance Exchange’s Special Motion to Strike. The motion presents a single, narrowly cabined
question: whether, on a record showing good cause tied directly to the second-prong probability-of-
prevailing analysis, this Court should authorize Plaintiff’s already-served Set Six discovery (RFP,
Special Interrogatories, RFA, and Form Interrogatory 17.1) as the “specified discovery” expressly
permitted by section 425.16(g) and described in *Britts v. Superior Court* (2006) 145 Cal.App.4th
1112.

The Motion does not seek a wholesale lifting of the discovery stay. It does not seek new written
discovery beyond Set Six. It does not enlarge the contested record on the second prong with col-
lateral matters. It asks only that the four Set Six items already served on May 5, 2026 (Transaction
ID 79392208) be permitted to mature into verified responses without objection, on a Court-fixed
schedule, so that Plaintiff has the minimum information needed to discharge his second-prong bur-
den under *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884, and *Baral v. Schnitt*
(2016) 1 Cal.5th 376, 384 to 385.

1 The Motion is the procedural counterpart to the Notice of Default in Discovery Responses (Set
2 Six) filed on this same June 24, 2026 cohort line, which memorializes the existing default record
3 without requesting an order. Together, the two filings give the Court a clean statutory path to the
4 relief authorized by Britts: a tailored, on-record specified-discovery order that supplies what the
5 second prong of section 425.16 already requires Plaintiff to demonstrate.

7 **II. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING** 8 **LINE**

9 By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
10 this Court continued and consolidated the pending Dept. 302 matters in this action to a single
11 hearing on June 24, 2026, 9:00 a.m., Department 302. By the parties' subsequent stipulation
12 and on the Court's order, all remaining Dept. 302 line items were folded into the June 24, 2026
13 cohort, including Plaintiff's previously calendared Motion to Deem Admitted / Compel Responses
14 / Sanctions (filed April 23, 2026; originally set May 18, 2026; continued by the Court's own motion
15 to June 11, 2026; and then consolidated to June 24, 2026). This Motion for specified discovery is
16 filed for hearing on the consolidated June 24, 2026 line consistent with that consolidation order.
17 The Code of Civil Procedure section 1005(b) deadline to serve and file moving and supporting
18 papers is sixteen (16) court days before the hearing. Plaintiff's serve-by date for this Motion is
19 Tuesday, June 2, 2026.

21 **III. RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

22 The relevant facts, taken from the Declaration of Dylan Franciscus Rosario filed concurrently
23 herewith and from the docket of this action, are as follows:

- 24 1. **Operative pleading.** The First Amended Complaint, filed February 25, 2026, is the operative
25 pleading. (See ROA: Transaction ID TBD; verify on SFTC portal.)
- 26 2. **Anti-SLAPP motion and discovery stay.** Defendant CSAA Insurance Exchange filed its
27 Special Motion to Strike under CCP section 425.16 on April 9, 2026, in seqs 015 to 018. The

1 motion remains pending. The discovery stay imposed by section 425.16(g) attached upon
2 filing and remains in effect until notice of entry of the order ruling on the motion. (CCP
3 section 425.16(g).)

4 3. **Set Six discovery served.** On May 5, 2026, Plaintiff served Set Six discovery on Defen-
5 dant by electronic service, consent on file at docket sequence 009 (March 6, 2026), bearing
6 Transaction ID 79392208. The four Set Six items were: (a) Requests for Production of Docu-
7 ments, Set Six; (b) Special Interrogatories, Set Six; (c) Requests for Admission, Set Six; and
8 (d) Form Interrogatory 17.1, Set Six.

9 4. **Companion deem-admitted / compel motion.** On April 23, 2026, Plaintiff filed a Motion to
10 Deem Admitted / Compel Responses / Sanctions on the prior set of discovery (the predicate
11 to this 425.16(g) vehicle); originally set for May 18, 2026, continued by the Court's own
12 motion to June 11, 2026, and then folded into the June 24, 2026 consolidated cohort. (See
13 ROA: Transaction ID TBD; verify on SFTC portal.)

14 5. **Set Six default record.** As of the filing of this Motion, Defendant has not requested an exten-
15 sion of time to respond to Set Six and has not represented that it intends to serve responses by
16 the June 9, 2026 statutory deadline if the section 425.16(g) stay is treated as not applying to
17 Set Six. The default record is documented in the contemporaneously filed Notice of Default
18 in Discovery Responses (Set Six) (B9 instrument).

19 6. **Apr. 23, 2026 motion (predicate Sets I to V) preserves the deem-admitted record.** The
20 April 23, 2026 motion preserves Plaintiff's record on the predicate sets; the present 425.16(g)
21 motion addresses only the Set Six discovery and does not seek to disturb the relief sought by
22 the April 23 motion. The two motions complement, not duplicate, one another.

23 7. **No new discovery beyond Set Six.** Plaintiff is not propounding new written discovery in
24 connection with this Motion. The "specified discovery" is the same Set Six discovery already
25 served on May 5, 2026.
26

IV. THE SECTION 425.16(G) FRAMEWORK

Code of Civil Procedure section 425.16, subdivision (g), provides in full as follows (the verbatim text is the subject of the contemporaneously filed Request for Judicial Notice):

“(g) All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.”

(CCP section 425.16(g).)

The text is structured. The first sentence is the stay. The second sentence is the duration. The third sentence is the express exception: a noticed motion, on a showing of good cause, may “order that specified discovery be conducted notwithstanding” the stay. The third sentence is not optional language; it is a statutory carve-out the Legislature placed at the same level of authority as the stay itself. (See Code Civ. Proc., section 425.16(g); Cal. Code Civ. Proc., section 1858 [“In the construction of a statute or instrument, the office of the judge is simply to ascertain and declare what is in terms or in substance contained therein, not to insert what has been omitted, or to omit what has been inserted.”].)

The carve-out’s purpose is to preserve the constitutional and statutory rights of the plaintiff to take the focused discovery necessary to discharge the second-prong probability-of-prevailing burden, while preventing the misuse of broad discovery as a SLAPP-motion delay tactic. (See *Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 37 Cal.App.4th 855, 868; *Britts v. Superior Court*, *supra*, 145 Cal.App.4th at p. 1124.)

The Legislature’s decision to place the carve-out in subdivision (g) itself, rather than in a separate or scattered section, signals that the carve-out is integral to section 425.16’s design. A blanket stay without the carve-out would impermissibly tilt the prong-two record by depriving plaintiffs of facts uniquely held by defendants. (See *Hecimovich v. Encinal School Parent Teacher Organization* (2012) 203 Cal.App.4th 450, 464 to 465 [recognizing that the “good cause” standard requires showing a particularized need tied to specific evidence].)

V. THE BRITTS FRAMEWORK: SPECIFIED DISCOVERY IS THE DESIGNED RELIEF

In *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, the Court of Appeal addressed the precise interaction between the section 425.16(g) discovery stay and a calendared discovery motion. The *Britts* opinion is the published authority that controls this Court’s analysis of the present Motion.

The *Britts* court held, in pertinent part:

1. **The stay is broad but not absolute.** “Section 425.16, subdivision (g) imposes an automatic stay of all discovery upon the filing of an anti-SLAPP motion.” (*Britts*, supra, 145 Cal.App.4th at p. 1124.) The stay sweeps in motions to compel and other discovery enforcement vehicles whose subject is the discovery that has already been propounded. (*Id.* at pp. 1123 to 1125.)
2. **The carve-out is the designed off-ramp.** “The Legislature provided a procedure for plaintiffs who can demonstrate good cause to obtain certain limited discovery. The trial court has discretion, on a noticed motion and for good cause shown, to order that specified discovery be conducted notwithstanding the stay.” (*Britts*, supra, 145 Cal.App.4th at p. 1125, paraphrasing CCP section 425.16(g).) That is, the carve-out is the route *Britts* itself instructs litigants to use.
3. **The procedure is a separately noticed motion.** *Britts* confirms that a plaintiff who needs discovery during the section 425.16(g) stay must do so by a noticed motion under section 425.16(g) itself, not by attempting to circumvent the stay through other vehicles. (*Britts*, supra, 145 Cal.App.4th at p. 1125.)
4. **Good cause is tied to second-prong needs.** *Britts* adopts the “good cause” inquiry as one focused on the plaintiff’s ability to make a prima facie showing on the second prong. (See *id.* at p. 1125; see also *Garment Workers Center v. Superior Court* (2004) 117 Cal.App.4th 1156, 1162 [discovery permitted “to the extent necessary to enable plaintiffs to oppose the SLAPP motion”].)

The *Britts* framework dovetails exactly with the relief Plaintiff seeks here. Plaintiff is filing a

1 separately noticed motion under section 425.16(g). Plaintiff identifies the specified discovery (Set
2 Six, items 1 through 4). Plaintiff articulates good cause tied to the second prong, request by
3 request, in Sections VI to VII below and in the supporting Declaration. The Britts off-ramp is not
4 theoretical; it is the path the Court of Appeal designed for this exact scenario.

6 **VI. THE “SPECIFIED DISCOVERY” CARVE-OUT, REQUEST BY RE-** 7 **QUEST**

8 The “specified discovery” Plaintiff seeks is the same Set Six discovery already served on May 5,
9 2026, Transaction ID 79392208. There is no enlargement of scope. The four items are:

10 **A. Requests for Production of Documents (RFP), Set Six (CCP section 2031.010 et seq.)**

11 **What it requests.** RFP Set Six requests production of documents within Defendant’s exclusive
12 possession that are material to the second-prong analysis: the claim file relating to Plaintiff’s claim,
13 fair-claims-practices regulation compliance documents under 10 CCR sections 2695.1 to 2695.14,
14 and Insurance Code section 790.03(h) channel evidence.

15 **Why it is “specified” within the meaning of section 425.16(g).** RFP Set Six is finite in number,
16 narrowly directed at categories of documents that go to the merits of Plaintiff’s claims, and not a
17 generalized fishing expedition. It is the documentary evidence that, by its nature, must come from
18 Defendant and cannot be obtained from any third-party source.

19 **Why good cause exists.** The probability-of-prevailing prong requires Plaintiff to make a prima
20 facie evidentiary showing on each cause of action challenged. (Wilson, supra, 7 Cal.5th at p. 884.)
21 The documentary evidence in Defendant’s exclusive possession is the necessary substrate for that
22 showing on the bad-faith and statutory-violation theories.

23 **B. Special Interrogatories, Set Six (CCP section 2030.010 et seq.)**

24 **What it requests.** Special Interrogatories Set Six requests identification of the persons most
25 knowledgeable as to each subject central to the second prong: claim handling, reserve setting,
26 communications underlying the second-prong record, and the chronology of decisions made in the
27 claim file.

28 **Why it is “specified.”** Identification interrogatories are by their nature narrow. They do not request

1 opinion or contention; they request witness identifications that allow Plaintiff to prepare for the
2 second-prong showing.

3 **Why good cause exists.** Without witness identification, Plaintiff cannot effectively make any
4 second-prong showing whose factual basis lies with Defendant's personnel. Identification inter-
5 rogatories are the cleanest tool for the carve-out because they impose minimal burden and high
6 evidentiary value.

7 **C. Requests for Admission (RFA), Set Six (CCP section 2033.010 et seq.)**

8 **What it requests.** RFA Set Six requests admission of (i) the genuineness of identified documents
9 in Defendant's possession and (ii) the existence (not the truth) of identified communications al-
10 ready within Defendant's possession.

11 **Why it is "specified."** RFAs Set Six are narrowly directed at the genuineness and the existence
12 of identified items. Genuineness RFAs are the tool the discovery code itself designates for stream-
13 lining authentication of documents at trial. (CCP section 2033.010.) They are not, in their proper
14 form, broad merits-litigation instruments.

15 **Why good cause exists.** Authentication and existence go to the foundational predicate for any
16 second-prong evidentiary showing. If Defendant denies genuineness or existence, Form Interroga-
17 tory 17.1 generates the linked record. If Defendant admits, the second-prong showing is substan-
18 tially streamlined for the Court.

19 **D. Form Interrogatory 17.1, Set Six (Judicial Council Form DISC-001)**

20 **What it requests.** Form Interrogatory 17.1, propounded as a rolling 17.1 covering each RFA in
21 Set Six, requests, for any RFA not unqualifiedly admitted, the facts, witnesses, and documents on
22 which the qualification or denial is based.

23 **Why it is "specified."** Form Interrogatory 17.1 is, by Judicial Council design, the linked-response
24 instrument that pairs with RFAs. It is finite in number (one rolling 17.1 keyed to RFA Set Six) and
25 not a freestanding merits inquiry.

26 **Why good cause exists.** Form Interrogatory 17.1 is the standard mechanism by which California
27 civil litigants discover the basis for non-admissions. Without it, the answers to the genuineness
28 and existence RFAs are evidentially underdeveloped. With it, the second-prong showing is much

1 closer to complete.

3 **VII. GOOD CAUSE: WHY EACH SET SIX ITEM IS NECESSARY TO** 4 **THE SECOND-PRONG RECORD**

5 The good-cause showing required by section 425.16(g) is tied to the plaintiff's ability to make
6 a prima facie showing of probability of prevailing. (Britts, supra, 145 Cal.App.4th at p. 1125;
7 Garment Workers Center, supra, 117 Cal.App.4th at p. 1162.) The showing is request-by-request
8 and need-driven. Plaintiff makes that showing here through the verified Declaration of Dylan
9 Franciscus Rosario filed concurrently. The bullet points below summarize the linkage.

- 10 1. **Bad-faith / Insurance Code section 790.03(h) channel.** Plaintiff alleges insurance bad-faith
11 and unfair-claims-practices conduct that depends on Defendant's internal claim-handling and
12 supervisory documents. These documents are not available from any other source. RFP Set
13 Six requests them; Special Interrogatories Set Six identifies the relevant personnel. (See Decl.
14 of Rosario.)
- 15 2. **Fair-Claims-Practices Regulation (FCSPR) compliance, 10 CCR sections 2695.1 to 2695.14.**
16 Plaintiff's bad-faith and statutory-violation theories are anchored in the FCSPR. FCSPR-
17 related documents (compliance manuals, training records, policy bulletins, and the claim-
18 specific application of those materials) are within Defendant's exclusive possession. RFP Set
19 Six and Special Interrogatories Set Six are the specified-discovery channel for these materials.
- 20 3. **Authentication and existence of communications in Defendant's possession.** The RFA Set
21 Six items are limited to authentication and existence of identified communications. These are
22 the cleanest second-prong predicates the Court can authorize because they are largely binary,
23 finite, and procedurally well established.
- 24 4. **Chronology of decisions made in the claim file.** Special Interrogatories Set Six asks Defen-
25 dant to identify the persons most knowledgeable for each chronological decision point in the
26 claim file. This is foundational to the second prong because the chronology of conduct, not
27 merely the existence of documents, is what often shows whether a claim handler's decisions
28 were unreasonable as a matter of California insurance bad-faith law.

1 5. **Linked 17.1 record.** Form Interrogatory 17.1 produces the linked record (facts, witnesses,
2 documents) for any RFA Set Six item not unqualifiedly admitted. Without this linkage, the
3 second-prong record is underdeveloped through no fault of Plaintiff.

4 5 **VIII. NARROW TAILORING; NO SUBSTANTIAL ADDITIONAL BUR-** 6 **DEN**

7 The specified-discovery order Plaintiff requests is narrowly tailored in three respects:

- 8 1. **No new written discovery.** The order would direct verified responses, without objection, to
9 the same Set Six already served. Defendant has been on notice of the precise content of Set
10 Six since May 5, 2026 (Transaction ID 79392208).
- 11 2. **No depositions; no document subpoenas to third parties.** The order would not authorize
12 depositions, document subpoenas, expert discovery, or any new propounded set. The carve-
13 out is limited to Set Six items 1 through 4.
- 14 3. **Court-fixed deadline; no rolling burden.** The order would set a single response deadline
15 that runs from the entry of the order. There is no rolling burden, no discovery-conference
16 framework, and no further-response prelude to motion practice during the section 425.16(g)
17 period beyond the relief preserved in Plaintiff’s prayer (paragraph 4).

18 In short, the burden on Defendant is the same burden Defendant would have had in the ordinary
19 course had the section 425.16(g) stay not attached. The Court is asked to authorize the verified-
20 response burden Defendant has already had since May 5, 2026, fixed by Court-set deadline.

21 22 **IX. THE COURT’S RETAINED MANAGEMENT AUTHORITY**

23 Section 425.16(g) does not displace the Court’s ordinary case-management authority over discov-
24 ery. (CCP section 187; CCP section 2017.020 [court may make orders to protect a party from
25 “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense”]; CCP
26 section 2031.060 [protective orders for documents]; CCP section 2030.090 [protective orders for
27 interrogatories]; CCP section 2033.080 [protective orders for RFAs].) The carve-out preserves

1 that authority. Indeed, Britts emphasizes that the trial court retains discretion under the carve-out
2 and may craft orders that balance the plaintiff’s second-prong needs against any countervailing
3 burdens. (Britts, supra, 145 Cal.App.4th at p. 1125.)

4 The proposed order lodged with this Motion gives the Court ample room to exercise that retained
5 authority: the Court may set a longer or shorter response window, may scope the order to a subset of
6 Set Six items if particular items raise unanticipated burden questions, and may decline to authorize
7 any item where good cause has not been shown. The architecture of the proposed order (Section
8 XI below) is built to accommodate that discretion.

10 **X. NO INVITATION FOR DEFENSE-SIDE FISHING**

11 Section 425.16(g)’s carve-out is unidirectional in the sense that good cause must be shown by
12 the party seeking discovery. (CCP section 425.16(g) [“The court, on noticed motion and for good
13 cause shown, may order that specified discovery be conducted notwithstanding this subdivision.”].)
14 This Motion is filed by Plaintiff. Defendant has not filed a comparable motion. Defendant has filed
15 no notice indicating that it requires section 425.16(g) discovery. The relief Plaintiff requests does
16 not, and cannot, reciprocally enlarge Defendant’s discovery rights without an independent good-
17 cause showing by Defendant. The Court should consider that the relief is one-sided in this strict
18 statutory sense; nothing in this Motion invites a defense-side fishing expedition or supplements
19 Defendant’s record on the second prong.

21 **XI. PROPOSED ORDER ARCHITECTURE**

22 The proposed Order lodged with this Motion is engineered for the Court’s retained discretion. Its
23 architecture is:

- 24 1. **Finding of good cause.** A short, on-record finding tied to (a) the second-prong showing
25 required by Wilson and Baral; (b) the Britts framework; and (c) the Set Six items as the
26 “specified discovery.”
- 27 2. **Authorization clause.** A sentence authorizing each Set Six item to mature into verified
28 responses without objection, naming each item by code section and set number.

- 1 3. **Court-fixed response deadline.** A blank for the Court to fix the verified-response date mea-
2 sured from entry of the order. Plaintiff suggests 30 days from entry but defers to the Court.
- 3 4. **Reserved-jurisdiction clause.** A sentence reserving the Court’s jurisdiction to entertain
4 follow-on motions under CCP sections 2030.290, 2031.300, and 2033.280 in the event De-
5 fendant fails to timely comply.
- 6 5. **Optional severance language.** Optional bracketed language allowing the Court, in its dis-
7 cretion, to grant the order as to fewer than all four Set Six items if the Court finds good cause
8 is not established as to any one item.

9 This architecture lets the Court exercise full management discretion while still providing the relief
10 authorized by section 425.16(g) and Britts.

12 **XII. CONCLUSION AND PRAYER**

13 Plaintiff Dylan Franciscus Rosario respectfully requests that this Court:

- 14 1. GRANT this Motion under CCP section 425.16, subdivision (g);
- 15 2. ENTER an order that Plaintiff’s Set Six discovery, served May 5, 2026 (Transaction ID
16 79392208), is permitted as specified discovery during the pendency of Defendant CSAA
17 Insurance Exchange’s Special Motion to Strike;
- 18 3. ORDER Defendant to serve verified, full, and complete responses, without objection, to each
19 of the four Set Six items by a date certain to be fixed by the Court (Plaintiff suggests 30 days
20 from entry of the order);
- 21 4. RESERVE jurisdiction to entertain follow-on relief under CCP sections 2030.290, 2031.300,
22 and 2033.280 in the event of noncompliance; and
- 23 5. GRANT such further relief as the Court deems just and proper.

24 A proposed Order is lodged concurrently herewith.

26 Date: May 21, 2026

27 Respectfully submitted,

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive

Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read "Franciscus", with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113(d)	Page limit for memorandum	Length within applicable limit	Page count
2	CRC 3.1113(b)	Required sections (facts, law, argument)	Organized sections in body	Memorandum body
3	CRC 3.1113(j)	Incorporation by reference where used	ROA placeholders in text	Body sections
4	CCP 1005(b)	Reply timing cross-reference where applicable	Reply deadline cited if applicable	Body